

See also *Gardner v. Toilet Goods Assn.*, 387 U. S. 167, 172 (1967).

II

The Eleventh Amendment to the Constitution of the United States provides: "The Judicial power of the United States shall not be construed to extend to any suit in law or equity, commenced or prosecuted against one of the United States by Citizens of another State" It is well established that the Amendment bars suits not only against the State when it is the named party but also when it is the party in fact. *Edelman v. Jordan*, 415 U. S. 651 (1974); *Poindexter v. Greenhow*, 114 U. S. 270, 287 (1885); *Cunningham v. Macon & Brunswick R. Co.*, 109 U. S. 446 (1883). Its applicability "is to be determined not by the mere names of the titular parties but by the essential nature and effect of the proceeding, as it appears from the entire record." *Ex parte New York*, 256 U. S. 490, 500 (1921).

However, since *Ex parte Young*, 209 U. S. 123 (1908), it has been settled that the Eleventh Amendment provides no shield for a state official confronted by a claim that he had deprived another of a federal right under the color of state law. *Ex parte Young* teaches that when a state officer acts under a state law in a manner violative of the Federal Constitution, he

"comes into conflict with the superior authority of that Constitution, and he is in that case stripped of his official or representative character and is subjected in his person to the consequences of his individual conduct. The State has no power to impart to him any immunity from responsibility to the supreme authority of the United States." *Id.*, at 159-160. (Emphasis supplied.)

Ex parte Young, like *Sterling v. Constantin*, 287 U. S. 378 (1932), involved a question of the federal courts'